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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE OF MOTION AND MOTION
FOR ORDER PERMITTING
SPECIFIED DISCOVERY;
MEMORANDUM OF POINTS AND
AUTHORITIES; DECLARATION OF
PLAINTIFF; [PROPOSED] ORDER**

(Code Civ. Proc., § 425.16(g); Cal. Rules of Court, rule
3.1110)

Anti-SLAPP Hearing:

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1 **NOTICE OF MOTION AND MOTION**

2 TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

3 PLEASE TAKE NOTICE that on a date to be set by the Court on ex parte application for an order
4 shortening time (requested hearing: **April 30, 2026 or as soon thereafter as the matter may be**
5 **heard**, Department 302), Plaintiff Franciscus Dylan Rosario will and hereby does move this Court,
6 pursuant to Code Civ. Proc., § 425.16(g), for an order **permitting specified discovery** prior to the
7 hearing on Defendant's Special Motion to Strike (scheduled for May 12, 2026).

8 The specified discovery sought is limited to:

- 9 1. One two-hour deposition of declarant Tyler J. O'Connell, limited to foundation, personal
10 knowledge, and authentication of his declarations submitted in this case.
11 2. One set of Requests for Production not exceeding eight requests, limited to documents ex-
12 pressly referenced or incorporated in those declarations.

13 No discovery will be served unless and until the Court grants this motion.

MEMORANDUM OF POINTS AND AUTHORITIES

I. Introduction

Code Civ. Proc., § 425.16(g) authorizes discovery “for good cause shown.” The governing standard — identification of specific discovery, tied to a specific prong-two element, not obtainable by other means, and not delaying the hearing — is set forth in *Schaffer v. City and County of San Francisco* (2008) 168 Cal.App.4th 992, 1010–1011; *1-800 Contacts, Inc. v. Steinberg* (2003) 107 Cal.App.4th 568, 593–594; and *Lafayette Morehouse, Inc. v. Chronicle Publishing Co.* (1995) 37 Cal.App.4th 855, 867–868. The present request — two hours of deposition on three authentication topics, and eight document requests confined to the four corners of declarant O’Connell’s own declarations — is the narrowest viable ask and squarely satisfies the *Schaffer* factors.

II. Good Cause Under *Schaffer*

(A) **Specific discovery tied to prong-two admissibility.** CSAA’s Special Motion to Strike relies on the Declaration of Tyler J. O’Connell. Plaintiff’s prong-two burden requires “competent and admissible evidence.” (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 949.) Foundation, personal knowledge, and authentication of that declaration are dispositive of whether the record is competent. The discovery sought goes to those elements only.

(B) **Not obtainable by other means.** The source of the foundation / knowledge / authentication facts is declarant O’Connell and the four-corner document universe he incorporated. (Plaintiff Decl., ¶¶ 5–8.)

(C) **Does not delay the hearing.** With a 2-hour cap and 8 RFPs, completion by May 8, 2026 is feasible; Plaintiff concurrently applies ex parte for an order shortening time.

(D) **Proportionality.** No PMK depo, no broad claim-handling RFPs, no RFAs, no third-party subpoenas. (*Lafayette Morehouse*, 37 Cal.App.4th at pp. 867–868.)

III. Stay Compliance

No discovery has been or will be served before this Court’s order. The proposed RFPs and deposition notice are conditional.

IV. Conclusion

The Motion should be granted.

1 **DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO**

2 I, Franciscus Dylan Rosario, declare:

- 3 1. I am the Plaintiff in this action, appearing in pro per, and have personal knowledge of the
4 matters stated herein.
- 5 2. On April 9, 2026, Defendant CSAA filed a Special Motion to Strike supported by the Dec-
6 laration of Tyler J. O'Connell. The motion is set for hearing May 12, 2026, Department
7 302.
- 8 3. The O'Connell Declaration is the principal evidentiary vehicle for CSAA's prong-two show-
9 ing.
- 10 4. To meet my prong-two burden I must test the foundation, personal knowledge, and authenti-
11 cation of the O'Connell Declaration.
- 12 5. I have no independent access to defense counsel's internal records or the provenance of the
13 exhibits attached to the O'Connell Declaration.
- 14 6. My proposed scope is capped: 2-hour deposition, three topics; 8 RFPs limited to documents
15 referenced in the O'Connell Declaration. Exhibit A is the proposed RFP set; Exhibit B is the
16 proposed deposition notice.
- 17 7. If ordered on April 30 or May 1, 2026, RFP production (with agreed 10-day shortened re-
18 sponse) and the 2-hour deposition can be completed by May 8, 2026 without continuance.
- 19 8. No discovery has been or will be served before the Court's Code Civ. Proc., § 425.16(g)
20 order.

21 I declare under penalty of perjury under the laws of the State of California that the foregoing is
22 true and correct. Executed this 24th day of April, 2026, at Rohnert Park, California.

Dated: April 24, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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EXHIBIT A — PROPOSED REQUESTS FOR PRODUCTION (CONDITIONAL; NOT SERVED)

Set One; eight requests; limited to the four corners of the O’Connell Declaration:

1. All documents expressly identified, quoted, or referenced by exhibit number in the Declaration of Tyler J. O’Connell dated April 9, 2026.
2. All documents reflecting chain of custody, source, or provenance of each exhibit attached thereto.
3. All communications concerning the preparation of the O’Connell Declaration (privilege log in lieu of privileged communications).
4. All documents supporting the declarant’s asserted personal knowledge of statements attributed to Plaintiff.
5. All documents in which Plaintiff is quoted and which are relied upon for the statements attributed to Plaintiff.
6. All unredacted versions of any redacted exhibit attached thereto.
7. All metadata (hash, timestamps, author) for each electronic exhibit attached thereto.
8. All documents demonstrating custodial authority to authenticate each exhibit under Evid. Code, §§ 1400–1402.

EXHIBIT B — PROPOSED DEPOSITION NOTICE OF TYLER J. O’CONNELL (CONDITIONAL; NOT SERVED)

Two-hour on-the-record cap; three topics:

1. Foundation for each exhibit referenced in the declarant’s April 9, 2026 declaration in this case.
2. Basis for asserted personal knowledge of statements attributed to Plaintiff in that declaration.
3. Authentication of communications quoted therein (Evid. Code, §§ 1400–1402).

[PROPOSED] ORDER PERMITTING SPECIFIED DISCOVERY (CCP §425.16(G))

The Court, finding good cause, **ORDERS:**

1. The Motion is **GRANTED**.
2. Plaintiff may serve one set of Requests for Production, not to exceed eight requests, limited to documents referenced or incorporated in the April 9, 2026 O'Connell Declaration; responses due in _____ calendar days.
3. Plaintiff may take the 2-hour deposition of Tyler J. O'Connell, limited to the three stated topics, completed on or before May 8, 2026.
4. No other discovery is authorized. The Code Civ. Proc., § 425.16(g) stay remains in place as to all other discovery.
5. The May 12, 2026 hearing shall proceed as scheduled.

Dated: _____

Hon. Joseph M. Quinn
Judge of the Superior Court